CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 21-14

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, EXTENDING THE CITY OF DUVALL AMERICAN RESCUE PLAN ACT OF 2021 EMERGENCY LEAVE POLICY.

WHEREAS, on March 17, 2020, the City Council approved Resolution 20-04, adopting the City's Public Health Emergency and/or Pandemic Response and Recovery Policy and Procedures (the "Pandemic Policy"), outlining the City's personnel policies and other actions taken by the City to address the COVID-19 pandemic; and

WHEREAS, on March 18, 2020, Congress passed the Families First Coronavirus Response Act ("FFCRA") requiring certain employers to provide their employees with paid sick leave and expanded family and medical leave for specified reasons related to the COVID-19 virus; and

WHEREAS, on April 7, 2020, the City Council approved Resolution 20-05 adopting the City of Duvall Families First Coronavirus Response Act Policy to comply with the FFCRA; and

WHEREAS the expanded family and medical leave protections for specified reasons related to the COVID-19 virus required by the FFCRA and the City's policy expired December 31, 2020; and

WHEREAS, on February 2, 2021, the City Council approved Resolution 21-03 reinstating the unused portion of emergency sick leave, expiring, March 31, 2021; and

WHEREAS, on March 11, 2021, Congress passed the American Rescue Plan Act (ARPA) of 2021, which provides employers with the opportunity to voluntarily adopt temporary emergency leave benefits for certain absences related to the COVID-19 outbreak; and

WHEREAS, on April 6, 2021, the City Council approved Resolution 21-07 extending the City of Duvall Families First Coronavirus Response Act Policy to continue extending emergency leave benefits under the ARPA through September 30, 2021 in recognition of a continued public health state of emergency; and

WHEREAS, the SARS-CoV-2 Delta variant has become the dominant strain of the virus, infecting vaccinated and unvaccinated individuals with a high and fast transmission rate; and

WHEREAS, children under 12 years old are currently not eligible for the vaccine, impacting the families of City of Duvall employees; and

WHEREAS, as of August 11, 2021 the 7-day rolling average of COVID-19 infections in King County, Washington has reached 130.5 per 100,000 residents which is well into the "High Transmission" category as defined be Seattle-King County Public Health; and

WHEREAS, the daily testing rates are now above 600 new and probable per cases per day as of August 11, 2021; and

WHEREAS, the City desires to extend the deadline for using the temporary emergency leave benefits that are available under the City's existing ARPA Emergency Leave policy in order to ensure appropriate support for affected employees.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

Section 1. Extension of The City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy: The extension of The City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy ("Policy") is hereby adopted as set forth on the attached Exhibit "A".

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 7th DAY OF September, 2021.

CITY OF DUVALL

Mayor Amy Ockerlander

Approved as to form:

Daniel Kenny, City Attorney

ATTEST/AUTHENTICATED:

Jodi Wycoff, City Clerk

Passed by the City Council: 09/07/2021
Resolution No.: 21-14